

23STCV25071 23STCV25071

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Case Number: 23STCV25071 Hearing Date: June 25, 2026 Dept: M

CASE NAME: Hunter, v. Krauss,
et al.

CASE NO.: 23STCV25071

MOTION: Motion
to Compel Answers at Deposition

HEARING DATE: 6/25/2026

Legal
Standard

Compel Further Answers at Deposition

CCP section 2025.480 permits a party to seek a motion to compel deposition answers where a deponent fails to answer any question or produce any document, electronically stored information, or tangible thing under the deponent's control. The court shall order the production or answer to be given if it determines that the matter sought is subject to discovery. (CCP § 2025.480(i).) Deponents are to answer deposition questions unless they pertain to privileged matters, or improper matters revealing a motive to harass or annoy, and "witnesses are expected to endure an occasional irrelevant question without disrupting the deposition process." (Stewart v. Colonial Western Agency, Inc. (2001) 87 Cal.App.4th 1006, 1015.)

The moving party must lodge, at

least 5 days before the hearing on the motion, a certified copy of whatever parts of the transcript are relevant to the motion. (CCP § 2025.480 (h).)

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).)

Monetary sanctions are mandatory against an unsuccessful moving or opposing party unless they acted with substantial justification or imposition of sanctions would be unjust. (CCP § 2025.480(j).)

Reopen Discovery

Except as otherwise provided, “any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for trial of the action.” (CCP, § 2024.020(a).) “[A] continuance or postponement of the trial date does not operate to reopen discovery proceedings” unless a motion to reopen discovery is filed and granted pursuant to CCP section 2024.050. (CCP, § 2024.020(b); Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568.) CCP section 2024.050 provides that “[o]n motion of any party, the court may grant leave to complete discovery proceedings, or to have a motion concerning discovery heard, closer to the initial trial date, or to reopen discovery after a new trial date has been set.” (CCP, § 2024.050(a).) “The purpose of imposing a time limit on discovery is to expedite and facilitate trial preparation and to prevent delay. Without a cutoff date, the parties could tie up each other and the trial court in discovery and discovery disputes right up to the eve of trial or beyond. Furthermore, . . . to be effective the cutoff date must be firm or some litigants will manipulate the proceedings to avoid the cut-off date.” (Beverly Hosp. v. Superior Court (1993) 19 Cal.App.4th 1289, 1295.) The reopening of discovery is a matter that is committed to the trial court’s sound discretion. (CCP, § 2024.050(a), (b).) In exercising that discretion, the trial court considers “any matter relevant to the leave requested,” including:

(1) The necessity and the reasons for the discovery.

(2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery

motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier.¿

(3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.¿

(4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.¿

(CCP, § 2024.050(b).)¿

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to extend or to reopen discovery, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (CCP § 2024.050(c).)

Analysis

Plaintiff James W. Hunter moves for the following orders:

1. Compelling nonparty deponent

Sierra Fino to reappear for the resumption and completion of her deposition, which was prematurely terminated on February 16, 2026;

2. Compelling Sierra Fino, on the

resumption of the deposition, to answer the deposition questions identified in Plaintiff's Separate Statement filed and served concurrently herewith;

3. Permitting Plaintiff to continue

the deposition on the obstructed subject areas, including but not limited to:

a. the

preparation, drafting, transmission, execution, and factual basis of Sierra Fino's declaration filed in support of Defendant Krauss's motion for summary judgment in this action;

b. the October 15, 2022 settlement meeting, including who was present, what occurred, whether Plaintiff attempted to leave, and the role of the unidentified male visible in the meeting video;

c. the timeline and nature of communications between Plaintiff and Sierra Fino in 2019 and 2020, including inconsistencies between deposition testimony and prior sworn testimony;

4. Ordering that the resumed deposition proceed in conformity with Code of Civil Procedure sections 2025.460 and 2025.470, including that no participant may unilaterally terminate the deposition and that no instruction not to answer may be made except on a valid privilege ground or upon a proper demand to suspend for protective-order relief;

5. Awarding Plaintiff the balance of any unused deposition time, plus such additional time as is reasonably necessary because the February 16, 2026 examination was impeded and delayed by repeated instructions not to answer, broad topic-level prohibitions, argumentative colloquy, interruptions, countdowns imposed by counsel, and improper termination; and

6. Awarding monetary sanctions, jointly and severally, against Sierra Fino, A. George Glasco, and Todd Krauss, or against such of them as the Court deems proper, in the amount of \$1,701, representing transcript costs, and other reasonable expenses caused by the conduct that necessitated this motion.

Hunter also moves to reopen discovery for the limited purpose of completing the deposition of Sierra Fino.

Plaintiff's objections to the Fino and Glasco declarations submitted in opposition are OVERRULED. Plaintiff's objections to the Glasco declaration submitted in sur-reply are SUSTAINED.

The opposing parties, including Glasco and Fino, raise service issues. They demonstrate that the deponent (and counsel) were not served in compliance with CCP § 2025.480 and California Rules

of Court, rule 3.1346. No proof of service exists for the initial hearing date. Plaintiff only submitted proofs of service which show personal service on Ms. Fino on May 31, 2026, and on Mr. Glasco on June 1, 2026. However, Glasco claims to have been in San Diego at the time of service, specifically in federal court in San Diego from 2-3 p.m. on June 1. He claims he left early that morning to avoid traffic. He also claims to have video evidence showing no service occurred at his house at 9 a.m. Fino states that she was at work at the time. Neither Mr. Glasco or Ms. Fino substantively respond to the motion.

The Court finds the Fino and Glasco declarations to be more persuasive than Plaintiff's submitted declarations, including the declaration from his unregistered process server. Thus, the motion remains unserved. Moreover, even if Plaintiff served Glasco or Fino on May 29 or June 1, this service would not be within the statutory 60-day time limit. (CCP § 2025.480; see *Weinstein v. Blumberg* (2018) 25 Cal.App.5th 316, 320 [motion to compel further responses to deposition was not "made" until required supporting papers were served].) As such, the motion would be untimely.

Accordingly, the motion is DENIED.

The opposing parties do not notice or substantiate any monetary sanctions against Plaintiff.